

**CHAPTER 43.**

An Act to extend by one month the time within which the Board of Control are required by section eleven of the Mental Deficiency Act, 1913, to determine whether orders made under that Act are to be continued; and to validate orders purporting to have been continued under that section. A.D. 1938.
[13th July 1938.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) An order made under the Mental Deficiency Act, 1913, that a defective be sent to an institution or placed under guardianship (hereinafter referred to as “ a detention order ”) may be continued by an order made by the Board of Control under subsection (2) of section eleven of that Act at any time within one month after the date on which, but for the provisions of this subsection, the detention order would be limited to expire in accordance with the provisions of the said section eleven, and accordingly every detention order shall, for the purpose of enabling the Board to consider the question of its continuance, remain in force for one month after any such date as aforesaid.

Amend-
ment of
3 & 4 Geo. 5.
c. 28, s. 11,
and valida-
tion of
orders
purporting
to have
been
continued
thereunder.

(2) Where, before the commencement of this Act, the Board have purported to make an order under